

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
3 BILL NO. 3144

By: Cornwell, Turner, Roberts
and Wolfley of the House

4 and

5 Alvord of the Senate

6
7
8 An Act relating to medical marijuana; amending 63
9 O.S. 2021, Section 422, as last amended by Section 1,
Chapter 447, O.S.L. 2024 (63 O.S. Supp. 2024, Section
10 422), which relates to the licensing of medical
marijuana commercial growers; restricting the number
11 of certain licenses Oklahoma Medical Marijuana
Authority may approve and issue to applicants;
12 updating language; repealing 63 O.S. 2021, Section
427.14a, as amended by Section 6, Chapter 168, O.S.L.
13 2023 (63 O.S. Supp. 2025, Section 427.14a), which
relates to the Oklahoma Medical Marijuana and Patient
14 Protection Act; and providing an effective date.

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16 AMENDMENT NO. 1. Page 2, lines 8-10, delete after the word
17 "licenses" on line 8 and before the period on line
18 10, all language and insert the words "in this
state shall not exceed two thousand five hundred
fifty. The Authority shall not approve, issue,
19 renew, or transfer a medical marijuana commercial
grower license if any such action would cause the
20 total number of such licenses to exceed two
thousand five hundred fifty. Such restriction
21 shall not be construed to supersede any current or
future moratorium on the issuance of new medical
22 marijuana commercial grower licenses"

23 and amend the title to conform
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1 Passed the Senate the 29th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

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12 2023 (63 O.S. Supp. 2025, Section 427.14a), which
relates to the Oklahoma Medical Marijuana and Patient
Protection Act; and providing an effective date.
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16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 63 O.S. 2021, Section 422, as last
18 amended by Section 1, Chapter 447, O.S.L. 2024 (63 O.S. Supp. 2024,
19 Section 422), is amended to read as follows:

20 Section 422. A. 1. The Oklahoma Medical Marijuana Authority
21 shall make available on its website in an easy-to-find location an
22 application for a medical marijuana commercial grower license. The
23 application fee shall be paid by the applicant in the amounts
24 provided for in Section 427.14 of this title. A method of payment

1 for the application fee shall be provided on the website of the
2 Authority. The Authority shall have ninety (90) business days to
3 review the application; approve, reject, or deny the application;
4 and send the approval, rejection, or denial letter stating the
5 reasons for the rejection or denial to the applicant in the same
6 method the application was submitted to the Authority.

7 2. Beginning November 1, 2026, the total number of medical
8 marijuana commercial grower licenses the Authority may approve and
9 issue in this state shall be restricted to no more than two thousand
10 five hundred fifty (2,550) licenses.

11 B. The Subject to the restriction set forth in paragraph 2 of
12 subsection A of this section, the Authority shall approve all
13 applications which meet the following criteria:

14 1. The applicant must be twenty-five (25) years of age or
15 older;

16 2. The applicant, if applying as an individual, must show
17 residency in this state;

18 3. All applying entities must show that all members, managers,
19 and board members are Oklahoma residents;

20 4. An applying entity may show ownership of non-Oklahoma
21 residents, but that percentage ownership may not exceed twenty-five
22 percent (25%);

23 5. All applying individuals or entities must be registered to
24 conduct business in this state; and

1 6. All applicants must disclose all ownership interests in the
2 commercial grower operation.

3 Applicants with a nonviolent felony conviction in the last two
4 (2) years, any other felony conviction in the last five (5) years,
5 inmates in the custody of the Department of Corrections or any
6 person currently incarcerated shall not qualify for a commercial
7 grower license.

8 C. A licensed medical marijuana commercial grower may sell
9 marijuana to a licensed medical marijuana dispensary or a licensed
10 medical marijuana processor. Further, sales by a licensed medical
11 marijuana commercial grower shall be considered wholesale sales and
12 shall not be subject to taxation. Under no circumstances may a
13 licensed medical marijuana commercial grower sell marijuana directly
14 to a licensed medical marijuana patient or licensed medical
15 marijuana caregiver. A licensed medical marijuana commercial grower
16 may only sell at the wholesale level to a licensed medical marijuana
17 dispensary, a licensed medical marijuana commercial grower or a
18 licensed medical marijuana processor. If the federal government
19 lifts restrictions on buying and selling marijuana between states,
20 then a licensed medical marijuana commercial grower would be allowed
21 to sell and buy marijuana wholesale from, or to, an out-of-state
22 wholesale provider. A licensed medical marijuana commercial grower
23 shall be required to complete a monthly yield and sales report to
24 the Authority. This report shall be due on the fifteenth of each

1 month and provide reporting on the previous month. This report
2 shall detail the amount of marijuana harvested in pounds, the amount
3 of drying or dried marijuana on hand, the amount of marijuana sold
4 to licensed processors in pounds, the amount of waste in pounds, and
5 the amount of marijuana sold to licensed medical marijuana
6 dispensaries in pounds. Additionally, this report shall show total
7 wholesale sales in dollars. The Authority shall have oversight and
8 auditing responsibilities to ensure that all marijuana being grown
9 by licensed medical marijuana commercial growers is accounted for.

10 D. There shall be no limits on how much marijuana a licensed
11 medical marijuana commercial grower can grow.

12 E. Beginning on November 1, 2021, licensed medical marijuana
13 commercial growers shall be authorized to package and sell pre-
14 rolled marijuana to licensed medical marijuana dispensaries. The
15 products described in this subsection shall contain only the ground
16 parts of the marijuana plant and shall not include marijuana
17 concentrates or derivatives. The total net weight of each pre-roll
18 packaged and sold by licensed medical marijuana commercial growers
19 shall not exceed one (1) gram. These final products must be tested,
20 packaged and labeled in accordance with Oklahoma law and rules
21 promulgated by the Authority.

22 F. Beginning November 1, 2022, all medical marijuana commercial
23 grower licensees who operate an outdoor medical marijuana production
24 facility shall be required to register with the Oklahoma Department

1 of Agriculture, Food, and Forestry as an environmentally sensitive
2 crop owner. Registration shall provide notice to commercial and
3 private pesticide applicators of the locations of medical marijuana
4 crops and help minimize the potential for damaging pesticide drift.
5 Medical marijuana commercial grower licensees shall provide their
6 business name, address, Global Positioning System (GPS) coordinates
7 for all outdoor medical marijuana production facilities, and any
8 other information required by the Department when registering with
9 the Environmentally Sensitive Area Registry.

10 SECTION 2. REPEALER 63 O.S. 2021, Section 427.14a, as
11 amended by Section 6, Chapter 168, O.S.L. 2023 (63 O.S. Supp. 2025,
12 Section 427.14a), is hereby repealed.

13 SECTION 3. This act shall become effective November 1, 2026.

14 Passed the House of Representatives the 25th day of February,
15 2026.

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Presiding Officer of the House
18 of Representatives

19 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate
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